PARLIAMENT OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

FAUNA AND FLORA PROTECTION (AMENDMENT) ACT, No. 49 OF 1993

[Certified on 20th October, 1993)

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Fauna *and Flora Protection* (Amendment)
Act, No. 49 of 1993

[Certified on 20th October, 1993]

L.D.-0. 91/90.

AN ACT TO AMEND THE FAUNA AND FLORA PROTECTION ORDINANCE

BE it enacted by the Parliament of the Democratic Socialist Republic of Sri Lanka as follows :—

1. This Act may *be cited* as the Fauna and flora Short Protection (Amendment) Act, No. 49 of 1993. title.

2. The long title to the Fauna and Flora Protection Ordinance (hereinafter referred to as the " principal enactment ") is iereby repealed and the following long **title substituted therefor :-** Replacement of the long title of Chapter 469.

AN ORDINANCE TO PROVIDE FOR THE PROTECTION, CONSERVATION AND PRESERVATION OF THE FAUNA AND FLORA OF SRI LANKA ; FOR THE PREVENTION OF Tag COMMERCIAL EXPLOITATION OF SUCH FAUNA AND FLORA ; AND TO PROVIDE FOR MATTERS CONNECTED THEREWITH OR INCIDENTAL THERETO. ".

3. Section 2 of the principal enactment is hereby amended as follows :- Amendment of section 2 of the principal enactment,

(1) in subsection (1) of that section, by the omission of paragraph (e) thereof, and the substitution therefor, of the following paragraphs :—

" (e) a Refuge ; or

(f) a Marine Reserve ; or

(g) a Buffer Zone." ;

(2) by the repeal of paragraph (a) of subsection (4) thereof, and the substitution therefor of the following paragraph :-

" (a) the limits of any Strict Natural Reserve, National Park, Nature Reserve, Jungle Corridor Refuge. Marine Reserve or Buffer

Zone, shall be altered or varied ; " ;

(3) in the marginal note to that section, by the substitu-. tion for the words "Intermediate Zones, and Sanctuaries", of the words "Refuges, Marine Reserves, Buffer Zones and Sanctuaries.".

Insertion of new section in the a& principal enactment.

4. The following new section is hereby inserted immediately after section 2 of the principal enactment and shall have effect as section 2A of that enactment :—

" Control and management of facilities wi National Reserves.

2A. The Director shall administer, control and manage the facilities or services which are to be provided within any National Reserve. ".

Amendment of sections 0 of the principal enactment

5. Section 3 of the principal enactment is hereby amended as follows :-

(1) in subsection (1) of that section by the repeal of paragraphs (a) and (c) thereof and the substitution therefor, of the following paragraphs :

" (a) no person shall *be* entitled to enter any Strict Natural Reserve or Nature Reserve, or in *any way* to disturb the fauna and flora therein ;

(c) no animal shall be hunted, killed or taken, and no plant shall *be* damaged, collected or destroyed in a Strict Natural Reserve, destroyed, in a Strict Natural Reserve,

(2) by the repeal of subsection (2) of that section ;

(3) in subsection (3) of that section, by the substitution, for all the words from " Nature Reserve or Jungle Corridor" to the end of that subsection, of the words "Nature Reserve, or in or over any State land in any Sanctuary, being a right which was so acquired by such person prior to the date of the establishment of such Nature Reserve or Sanctuary." ; and

(4) in the marginal note to that section, by the substitution for the words " Jungle Corridors, National Parks, Sanctuaries and Intermediate Zones.", of the words " National Parks and Sanctuaries. ".

S. The following new section is hereby inserted immediately after section 3, and shall have effect as section 3A of the principal enactment :— Insertion et new section 314 in the principal enactment.

Ban on tourist hotels &c., within one mile of National Reserve.

3A. No person shall, within one mile of the boundary cif a National Reserve, construct a tourist hotel or provide any services or facilities similar to the services or facilities provided by a tourist hotel. ".

7. Section 5A of the principal enactment is hereby repealed and the following section substituted therefor :— Replacement of section SA of the prthcipal enactment.

"Restriction of entry into Nature *Reserves.*

5A. (i) No person shall enter or remain within any Nature Reserve except under the authority and in accordance with the conditions of a permit issued by the prescribed °Meer on payment of the prescribed fee.

(2) If no fee is prescribed for the issue of a permit under subsection (1), such permit shall be issued free of charge. ".

8. Section 6 of the principal enactment is hereby amended as follows :— Amendment of section 6 of the principal enactment.

(1) in subsection (1) of that section--

(i) by the substitution for the words "Nature Reserve or Jungle Corridor", of the *words* " Nature Reserve, Jungle Corridor, Refuge, Marine Reserve or Buffer Zone "

(ii) by the repeal of paragraph *(g)* thereof and the substitution therefor, of the following paragraph :-

" *(g) possess* or use any trap or any explosive or gun or other weapon or poisonous substance capable of being used for the purpose of injurN or destroying any animal or plant n$_p$r "

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(iii) by the substitution for the words "constructed by him." in paragraph (j) of that subsection, of the words " constructed by him ; or " ; and

(iv) by the insertion, immediately after praagraph *(j)* of that subsection, of the following. paragraph :-

" (k) construct or manage any tourist hotel or provide **any services or facilities similar to the services or facilities provided by a tourist hotel ".**

(2) in subsection. (2) of that section, by the substitution for the wards "Nature Reserve or Jungle Corridor, ", of the words " Nature Reserve, Jungle Corridor, Refuge, Marine Reserve or Buffer Zone," ; -

(3) by the insertion immediately after subsection (3) of that section, of the following subsection :—

" (4) Any person who acts in contravention of the provisions of this section shall be guilty of an offence and shall on conviction be liable **to imprisonment** of either description for a term not less than one year and not exceeding five years. " ; and

(4) in the marginal note to that section, by the substitu**tion for the words** " Nature Reserves and Jungle Corridors. ", of he words " Nature Reserves, Jungle. Corridors, **Refuges, Marine Reserves and Buffer Zones.".**

Amendment of section 7 *et the* principal enactment.

9. Section 7 of the principal enactment is hereby amended **as follows :—**

(1) in subsection (1) of that section—

(1) by the omission of paragraph (a) thereof ; and

(ii) in paragraph (b) thereof, by the substitution for the words " in any Intermediate Zone or Sanctuary ", of the words " in any Sanctuary " ; **and**

(iii) in paragraph (c) thereof, by the substitution for the words " in any Intermediate Zone or on any Crown land ", of the words " on any State' V";

(2) by the repeals' of subsection (2) of that section ; and

(3) inthe,marginal note to that section, by the substitution, for the words " Intermediate Zones and Sanctuaries ", of the word "Sanctuaries ".